

1 ENGROSSED HOUSE
2 BILL NO. 3802

By: Sneed, Adams, Norwood,
Luttrell, Wilk, Kelley, and
Roberts of the House

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4 and

5 Frix of the Senate
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8 An Act relating to insurance; prohibiting insurers
9 from increasing motor vehicle liability premiums
10 based solely on removal of deceased spouse from
11 policy; clarifying removal of a deceased spouse shall
12 not be treated as a material change; clarifying
section does not prevent increasing premiums at
renewal for other reasons; establishing that any
increase in violation shall be void; providing for
codification; and providing an effective date.

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15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 6093 of Title 36, unless there
18 is created a duplication in numbering, reads as follows:

19 It shall be unlawful for any insurer to increase a motor vehicle
20 liability insurance policy premium based solely on the removal by a
21 named insured of a deceased spouse from the policy. The removal of
22 a deceased spouse shall not be treated as a material change in risk
23 for purposes of underwriting, rating classification, or premium
24 calculation. Nothing in this section shall be construed as to

1 prevent insurers from increasing premiums at renewal based on either
2 documented changes in any actuarially supported risk factors not
3 otherwise prohibited by law, including but not limited to driving
4 record, claims history, coverage elections, mileage, garaging
5 location, or other actuarially supported risk factors; or rate
6 changes approved by the Oklahoma Insurance Department that are
7 applied uniformly to a class of insureds. Any premium increase
8 imposed in violation of this section shall be void and
9 unenforceable, and the insurer shall refund any excess premium
10 collected.

11 SECTION 2. This act shall become effective November 1, 2026.

12 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House
of Representatives

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17 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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